

Smt. Indrani Sharma vs State Of Chhattisgarh on 7 August, 2024

Author: Ramesh Sinha

Bench: Ramesh Sinha

1/7

2024:CGHC:29560-DB
NAF

HIGH COURT OF CHHATTISGARH AT BILASPUR

CRMP No. 537 of 2020

1. Smt. Indrani Sharma W/o Shri Parmanand Sharma Aged About 51 Years
Resident Of Vijay Chowk, F.C.I. Colony, Changorabhata, P.S. D.D. Nagar Distr
Raipur Chhattisgarh., District : Raipur, Chhattisga

2. Parmanand Sharma S/o Late Durga Prasad Tiwari Aged About 59 Years Residen
Of Vijay Chowk, F.C.I. Colony, Changorabhata, P.S. D.D. Nagar District- Raip
Chhattisgarh., District : Raipur, Chhattisgar

3. Abhishek Sharma S/o Parmanand Sharma Aged About 30 Years Resident Of
Vijay Chowk, F.C.I. Colony, Changorabhata, P.S. D.D. Nagar District- Raipur
Chhattisgarh., District : Raipur, Chhattisgarh

4. Ojaswini Sharma W/o Shri Ajay Sharma Aged About 29 Years Resident Of Janh
Chowk, Kota Raipur District - Raipur Chhattisgarh., District : Raipur, Chhat
... Petit

versus

1. State Of Chhattisgarh Through Woman Police Station - Raipur District - Ra
Chhattisgarh., District : Raipur, Chhattisga

2. Smt. Saumya Sharma W/o Abhishek Sharma Residence Of C/o Shri
Ravibhushan Sharma, Sundar Nagar Raipur District - Raipur Chhattisgarh., Dis
Raipur, Chhattisgarh

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For Petitioners : Mr. Arvind Sinha, Advocate

For Respondent/State : Mr. Hariom Rai, Panel Lawyer

For Respondent No.2 : Mr. C.R. Sahu, Advocate

Hon'ble Shri Justice Ramesh Sinha, Chief Justice

Hon'ble Shri Justice Ravindra Kumar Agrawal, Judge

Order On Board

Digitally

signed by
RAVI
SHANKAR

MANDAVI

Per Ramesh Sinha, Chief Justice

07/08/2024

1. This petition under Section 482 of the Code of Criminal Procedure has been filed for invoking inherent powers under Section 482 of the Code of Criminal Procedure, 1973, to quash the criminal proceedings of Criminal Case No. 11222/2019, pending before the learned Judicial Magistrate First Class, Raipur, on the basis of compromise arrived at between the parties. The said criminal case is pending in pursuance of the Crime No. 12/2019 registered at Police Station Mahila Thana, Raipur for the offence under Section 498-A/34 of IPC.

2. The brief facts of the case are that the marriage between the petitioner No.3/Abhishek Sharma and Respondent No.2/Smt. Saumya Sharma was solemnized on 06.03.2018 at Raipur as per the Hindu rights and rituals. After some time of marriage, dispute arose between the parties and ultimately the Respondent No.2/Smt. Saumya Sharma has lodged an FIR against the petitioners for the offence punishable under Section 498-A/34 of IPC at Police Station Mahila Thana, Raipur. The FIR of Crime No.12/2019 was registered against the petitioner and ultimately charge-sheet was filed before the learned trial Court where the Criminal Case No.11222 of 2019 is pending before the learned Judicial Magistrate, First Class, Raipur.

3. Learned counsel for the petitioner submits that during the pendency of the said criminal case, the parties have settled their dispute and entered into the compromise and have settled the terms and conditions of compromise. A photocopy of the compromise dated 02.07.2024 entered between the parties has been filed on 24.07.2024 alongwith the affidavit which is on record. As per the terms and conditions of the compromise executed on 02.07.2024, it has been agreed by the petitioner No.3 and respondent No.2 to withdraw all the cases filed against each other, in various subordinate Courts of Raipur including High Court of Chhattisgarh, Bilaspur.

4. The parties have settled that all the proceedings pending between the parties i.e. criminal case of Section 498-A/34 of IPC, accordingly, the proceedings in case No.724/2021 pending before the learned Judicial Magistrate First Class, Raipur under the Protection of Women from Domestic Violence Act and case No.1142/2019 pending before the learned Principal Judge, Family Court, Raipur for maintenance under Section 125 of CrPC have already been withdrawn by respondent No.2. Further, the petitioner has also withdrawn the case No.472/2021 filed under Section 13-1(1-A) & (B) of the Hindu Marriage Act 1955, pending before learned Principal Judge, Family Court, Raipur. Both petitioner No.1 and respondent No.2 have decided to live separate and independent lives forever.

5. As the parties have amicably settled their dispute by way of mutual settlement. In support of their contention, the affidavit of the petitioner No.3/Abhishek Sharma as well as the Respondent No.2/Smt. Saumya Sharma has been filed with the present petition and the learned counsel for the respective parties have verified the same. The original compromise document produced by the

learned counsel for the petitioner is taken on record.

6. Learned counsel for the parties have submitted that they have submitted a joint application for dissolution of marriage on the basis of mutual consent under Section 13-B of the Hindu Marriage Act 1955 has been filed before the learned Principal Judge, Family Court, Raipur.

7. Learned counsel for the respondent No.2 has admitted the facts of compromise dated 02.07.2024 entered between the parties.

8. We have heard learned counsel for the parties.

9. Learned counsel for the parties placing reliance on the case of Jitendra Raghuvanshi and others vs. Babita Raghuvanshi and another, 2013 (4) SCC 58, Jagdish Channa and others vs. State of Haryana and another, AIR 2008 SC 1968, Madan Mohan Abbot vs. State of Punjab, AIR 2008 SC 1969, Shiji vs. Radhika and another, (2011) 10 SCC 705, Narinder Singh and others vs. State of Punjab, - (2014) 6 SCC 466 and Gian Singh vs. State of Punjab and others reported in (2012) 10 SCC 303, submitted that criminal proceedings arising out of matrimonial disputes can be quashed by the Court, if the Court is satisfied that the matter has been settled between the parties amicably.

10. It is not in dispute that in the present case, after filing of criminal case under Section 498-A/34 of IPC, parties have amicably settled their disputes and pursuant thereto, filed an application under Section 13-B of Hindu Marriage Act, 1955 for grant of decree of divorce.

11. In the case of Jitendra Raghuvanshi (supra) Hon'ble Supreme Court held as under:- 10 to 15 paras "10. Learned counsel for the parties, by drawing our attention to the decision of this Court in B.S. Joshi and Others vs. State of Haryana and Another, (2003) 4 SCC 675, submitted that in an identical circumstance, this Court held that the High Court in exercise of its inherent powers under Section 482 can quash criminal proceedings in matrimonial disputes where the dispute is entirely private and the parties are willing to settle their disputes amicably.

11. It is not in dispute that the facts in B.S. Joshi (supra) are identical and the nature of the offence and the question of law involved are almost similar to the one in hand.

12. After considering the law laid down in State of Haryana vs. Bhajan Lal, 1992 Supp (1) SCC 335 and explaining the decisions rendered in Madhu Limaye vs. State of Maharashtra, (1977) 4 SCC 551, Surendra Nath Mohanty & Anr. vs. State of Orissa, (1999) 5 SCC 238 and Pepsi Foods Ltd. & Anr. vs. Special Judicial Magistrate & Ors., (1998) 5 SCC 749, this Court held:

"8. We are, therefore, of the view that if for the purpose of securing the ends of justice, quashing of FIR becomes necessary, Section 320 would not be a bar to the exercise of power of quashing. It is, however, a different matter depending upon the facts and circumstances of each case whether to exercise or not such a power." Considering matrimonial matters, this Court also held:

"12. The special features in such matrimonial matters are evident. It becomes the duty of the court to encourage genuine settlements of matrimonial disputes."

13. As stated earlier, it is not in dispute that after filing of a complaint in respect of the offences punishable under Sections 498A and 406 of IPC, the parties, in the instant case, arrived at a mutual settlement and the complainant also has sworn an affidavit supporting the stand of the appellants. That was the position before the trial Court as well as before the High Court in a petition filed under Section 482 of the Code. A perusal of the impugned order of the High Court shows that because the mutual settlement arrived at between the parties relate to non-compoundable offence, the court proceeded on a wrong premise that it cannot be compounded and dismissed the petition filed under Section 482. A perusal of the petition before the High Court shows that the application filed by the appellants was not for compounding of non-compoundable offences but for the purpose of quashing the criminal proceedings.

14. The inherent powers of the High Court under Section 482 of the Code are wide and unfettered. In B.S. Joshi (supra), this Court has upheld the powers of the High Court under Section 482 to quash criminal proceedings where dispute is of a private nature and a compromise is entered into between the parties who are willing to settle their differences amicably. We are satisfied that the said decision is directly applicable to the case on hand and the High Court ought to have quashed the criminal proceedings by accepting the settlement arrived at.

15. In our view, it is the duty of the courts to encourage genuine settlements of matrimonial disputes, particularly, when the same are on considerable increase. Even if the offences are non-compoundable, if they relate to matrimonial disputes and the court is satisfied that the parties have settled the same amicably and without any pressure, we hold that for the purpose of securing ends of justice, Section 320 of the Code would not be a bar to the exercise of power of quashing of FIR, complaint or the subsequent criminal proceedings."

12. In the light of the above discussion, we hold that the High Court in the exercise of its inherent powers can quash the criminal proceedings or FIR or complaint in appropriate cases to meet the ends of justice and Section 320 of the Code does not limit or affect the powers of the High Court under Section 482 of the Code.

13. In the case of Gian Singh (supra) Apex Court held as under:-

57. The position that emerges from the above discussion can be summarised thus: the power of the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320 of the Code. Inherent power is of wide plenitude with no statutory limitation but it has to be exercised in accord with the guideline engrafted in such power viz; (i) to secure the ends of justice or (ii) to prevent abuse of the process of any Court. In what cases power to quash the criminal proceeding or complaint or F.I.R may be exercised where the offender and victim have settled their dispute would depend on the facts and circumstances of

each case and no category can be prescribed. However, before exercise of such power, the High Court must have due regard to the nature and gravity of the crime. Heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. cannot be fittingly quashed even though the victim or victim's family and the offender have settled the dispute. Such offences are not private in nature and have serious impact on society. Similarly, any compromise between the victim and offender in relation to the offences under special statutes like Prevention of Corruption Act or the offences committed by public servants while working in that capacity etc; cannot provide for any basis for quashing criminal proceedings involving such offences. But the criminal cases having overwhelmingly and pre-dominantly civil flavour stand on different footing for the purposes of quashing, particularly the offences arising from commercial, financial, mercantile, civil, partnership or such like transactions or the offences arising out of matrimony relating to dowry, etc. or the family disputes where the wrong is basically private or personal in nature and the parties have resolved their entire dispute. In this category of cases, High Court may quash criminal proceedings if in its view, because of the compromise between the offender and victim, the possibility of conviction is remote and bleak and continuation of criminal case would put accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal case despite full and complete settlement and compromise with the victim. In other words, the High Court must consider whether it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and wrongdoer and whether to secure the ends of justice, it is appropriate that criminal case is put to an end and if the answer to the above question(s) is in affirmative, the High Court shall be well within its jurisdiction to quash the criminal proceeding.

14. In view of the above, this Court is of the considered opinion that the object of law is not only to punish the culprit but, the objective of the law is also to maintain peace, tranquility and harmony in the society. The main purpose of which is to settle down in life and live peacefully. There is a need to encourage matrimonial relations so that the parties may think over their defaults and settle their disputes amicably by mutual agreement instead of fighting it out in a Court of law where it takes years and years to conclude and in that process, the parties lose their precious years in attending their cases in different Courts.

15. Therefore, considering the law laid down by the Hon'ble Supreme Court in the case of Jitendra Raghuwanshi (supra), Gian Singh (supra), this Court in exercise of its inherent powers under Section 482 of the Code of Criminal Procedure, the petition is allowed. FIR No.12/2019 registered under Section 498-A IPC at Police Station - Mahila Thana, Raipur District Raipur (C.G.) and consequent proceedings of Criminal Case No.11222/2019 pending before the learned Judicial Magistrate First Class, Raipur, are hereby quashed.

Sd/-
(Ravindra Kumar Agrawal)

Sd/-
(Ramesh Sinha)

Ravi Mandavi